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VOID AND VOIDABLE MARRIAGES

THE grounds on which a marriage is voidable, as opposed to being void *ab initio*, are first, impotence and, secondly, the statutory grounds laid down in the Matrimonial Causes Act, 1958, s. 8 (wilful refusal to consummate the marriage, unsoundness of mind, mental disorder or epilepsy, the respondent suffering from venereal disease or being pregnant by some person other than the petitioner). In addition, recent judicial dicta and textbooks have expressed the view that there may be further impediments which render a marriage voidable and not void; thus, it has been suggested that threats and duress,[1] fear,[2] fraud,[3] where one party is intoxicated [4] or where there is a mistake as to the nature of the ceremony [5] are or may be circumstances rendering the marriage voidable. It is proposed to examine the law of nullity in an attempt to determine what effect these further impediments have on a marriage and inquire whether their presence renders the marriage voidable or void.

There is now a clear distinction between a void and a voidable marriage. A void marriage is one which, owing to the presence of an impediment at the time of the ceremony, will be regarded by every court in any case in which the existence of the marriage is in issue as never having taken place and can be so treated by both parties to it without the necessity of any decree annulling it; the

[1] Halsbury's *Laws*, 3rd ed., Vol. 12, p. 225; Rayden, 9th ed., p. 78, para. 12, note (d); *Parojcic* v. *Parojcic* [1958] 1 W.L.R. 1280; *Ross-Smith* v. *Ross-Smith* [1961] P. 39 at p. 57 (Willmer L.J. said: "In *Cooper* v. *Crane* [1891] P. 369 . . . the wife petitioned for a decree of nullity on the ground that her consent was obtained by duress . . . jurisdiction was assumed without argument though the marriage was merely voidable"; in *Cooper* v. *Crane* (*supra*) it was not stated whether the marriage there was void or voidable); *Mahadervan* v. *Mahadervan* [1962] 3 All E.R. 1108 at p. 1111.

[2] Halsbury's *Laws*, 3rd ed., Vol. 12, p. 225; Rayden, 8th ed., p. 78, para. 12, note (d).

[3] Jackson, *Formation and Annulment of Marriage*, pp. 192, 193.

[4] Halsbury's *Laws*, 3rd ed., Vol. 12, p. 225.

[5] Rayden, 9th ed., p. 77, para. 11, note (h); Halsbury's *Laws*, Vol. 19, p. 775, note (h); see also *Kassim* v. *Kassim* [1962] P. 224 at p. 228.

decree in the case of a void marriage is in essence a declaration that no marriage had come into existence and any person having sufficient interest in a declaration of nullity can petition for a decree at any time, even after the death of one or both parties. A voidable marriage is one that will be regarded by every court as a valid, subsisting marriage until a decree annulling it has been pronounced by a court of competent jurisdiction, which can be done only at the instigation of one of the parties during the lifetime of both parties. Thus, in the case of a void marriage, no valid marriage ever comes into existence and the parties to it never acquire the status of husband and wife, whereas in the case of a voidable marriage the parties acquire that status [6] and the marriage is valid unless and until annulled during the joint lives of the parties at the instance of one of them. It follows, therefore, that if one party dies without a decree of nullity having been pronounced the voidable marriage cannot thereafter be questioned, but is for ever valid.

This distinction between void and voidable marriages, which today is taken as commonplace, did not always exist but is the result of a development of the law of marriage since the Reformation. Prior to the Reformation marriage, being considered to be of a spiritual nature and a sacrament, was regulated by canon law which was administered by the ecclesiastical courts. By canon law a marriage was either valid and unimpeachable or else void *ab initio*,[7] and the concept of a voidable marriage, that is one which was valid at its inception but invalidated at a later date, was unknown to canon law [8]: there was either a good and lawful marriage or there was no marriage at all. Thus, want of consent, marriage within the prohibited degrees of consanguinity or affinity,

[6] One effect of this is that in a voidable marriage the wife automatically acquires the husband's domicile whereas in the case of a void marriage, the wife never having become a married woman, retains her pre-marriage domicile unless she acquires a domicile of choice by living with her husband in his country; see *De Reneville* v. *De Reneville* [1948] P. 100, where the question whether the court had jurisdiction to hear the suit depended on the wife's domicile and this in turn depended on whether the marriage was void or voidable. Other distinctions between a void and voidable marriage are: in a voidable marriage the petitioner's conduct may amount to approbation of the marriage and preclude him from disputing the validity of the marriage (*G.* v. *M.* (1885) 10 A.C 171), but the doctrine of approbation does not apply to a void marriage; the children of a voidable marriage are legitimate (Matrimonial Causes Act, 1950, s. 9), but the children of a void marriage are legitimate in certain circumstances only (Legitimacy Act, 1959, s. 2).

[7] Also called void *ipso jure* or void *ipso facto*.

[8] Nullity in the ecclesiastical court was known as *divortium a vinculo matrimonii*, as opposed to *divortium a mensa et thoro*, the equivalent of the modern judicial separation, which separated the parties but they remained husband and wife. Divorce in the modern sense, *i.e.*, a dissolution of marriage, could take place only in the case of a Papal dissolution of an unconsummated marriage and was otherwise unknown in pre-Reformation canon law; after the Reformation and until the Matrimonial Causes Act, 1857, dissolution of marriage could take place only by private Act of Parliament.

a prior existing marriage or espousal (pre-contract), impotence [9] were all impediments which rendered the marriage void and the ecclesiastical courts, which alone could pronounce nullity decrees, made such a decree at the suit of any interested person at any time, even after the death of the parties to the marriage. After the Reformation marriage ceased to be a sacrament [10] and the common law courts began to interfere with the freedom hitherto available to the ecclesiastical courts to decide for themselves on the validity of a marriage. In some cases, such as where a party married at a time when he already had a spouse, the common law courts recognised that the purported marriage was no marriage at all and was and always had been void, and they refrained from interfering with the ecclesiastical courts' power to declare such marriage void. But the common law courts had a different attitude with regard to some of the other impediments; in the case of pre-contract,[11] marriage within the prohibited degrees [12] and impotence [13] they allowed the ecclesiastical courts to pronounce on the validity of a marriage while both parties to it were still alive, but as soon as one of the parties was dead they interfered by writ of prohibition to prevent the ecclesiastical courts from declaring the marriage void.[14] This led to a distinction between civil disabilities (*e.g.*, bigamy) and canonical disabilities (*e.g.*, pre-contract, impotence): in the case of a civil disability, the ecclesiastical courts could at any time, at the suit of any interested party, declare the marriage void; in the case of a canonical disability, the ecclesiastical courts could only annul the marriage during the lifetime of both parties. The result was that a marriage subject to a canonical disability became unimpeachable as soon as one party to it was dead and, by extension,

[9] *Harthan* v. *Harthan* [1949] P. 115 at pp. 131–132.

[10] Article 25 of the Thirty-nine Articles; *Fender* v. *Mildmay* [1938] A.C. 1 at p. 27.

[11] *Hemming* v. *Price* (1701) 12 Mod. 432. Pre-contract was abolished by Lord Hardwicke's Act, 1753.

[12] *Elliott* v. *Gurr* (1812) 2 Phil. 16; *Hemming* v. *Price* (*supra*); *Harris* v. *Hicks* (1692) 2 Salk. 548. By the Marriage Act, 1835, marriages within the prohibited degrees, which had previously been voidable (see s. 1), were made void: *Brook* v. *Brook* (1861) 9 H.L.C. 193 at pp. 222, 240.

[13] *Harthan* v. *Harthan* [1949] P. 115 at pp. 131–132.

[14] The reason for the interference by the common law courts was to protect the issue from being bastardised and dis-inherited as they "cannot so well defend the marriage as the parties, both alive, might themselves have done": *Ray* v. *Sherwood* (1836) Curt. 173 at pp. 188, 200; *Fenton* v. *Livingstone* (1859) 3 Macq. 497 at pp. 555, 556; *Brook* v. *Brook* (1861) 9 H.L.C. 193 at p. 204. But Blackstone (*Commentaries*, 1778, 8th ed., IV, 434), Browne (*Ecclesiastical Law of Ireland*, 1803, 2nd ed., 275), Poynter (*Doctrine and Practice of Ecclesiastical Courts*, 1824, p. 154) and Roger (*Ecclesiastical Law*, 1840, p. 550), say that marriages contracted under these disabilities were considered sinful, hence the ecclesiastical courts separated the parties *pro salute animorum*, but as after the death of one of the parties this proceeding could no longer contribute to the good of their souls, the common law courts would not permit the ecclesiastical courts thereafter to declare the marriage void. Perhaps concern for the children was the reason prompting the common law courts to interfere and the latter reason given by them to justify their interference.

such a marriage came to be regarded as valid until annulled.[15] Hence arose the distinction between void and voidable marriages: marriages subject to a civil disability remained void *ab initio* and could be declared void at any time; marriages subject to a canonical disability became voidable only during the lifetime of both parties.[16] In both cases the decree used the same words declaring the marriage to be and always to have been void.[17]

We must begin the examination of the disabilities or impediments which it is suggested may make the marriage voidable [18] by determining the true nature of these impediments: is each an impediment in its own right or do they all fall into one and the same category? On examination it will be seen that all these impediments—duress, fear, mistake as to ceremony and so on—are but examples of lack of true consent to marry and it is this absence of true consent which avoids the marriage. As Sir Francis Jeune P. said in *Moss* v. *Moss* [19] "there must be the voluntary consent of both parties. . . . It has been repeatedly stated that a marriage may be declared null on the ground of fraud or duress. But, on examination, it will be found that this is only a way of amplifying the proposition long ago laid down (*Fulwood's Case* [20]) that the voluntary consent of the parties is required. In the case of duress with regard to the marriage contract, as with regard to any other, it is obvious that there is an absence of a consenting will."

In other decisions the court treated duress,[21] fear,[22] fraud,[23]

15 "The marriage would be good in one sense, because it could not be set aside; and the issue would be legitimate in that sense, because there were no means provided by the English law to deprive them of the rights belonging to legitimate issue": *Fenton* v. *Livingstone* (1859) 3 Macq. 497 at p. 553 (H.L.); "Such a marriage . . . is often spoken of as voidable. But the true view is that it was absolutely void *ab initio*, although the only court competent to declare it void was the Ecclesiastical Court and the jurisdiction of that court ceased on the death of either party": *R.* v. *Dibdin* [1910] P. 57 at p. 108 (C.A.).

16 I have been unable to trace how soon after the Reformation this distinction became effective. It is clear from Archbishop Bancroft's protest and the judges' reply (*Articuli Cleri*, 2 Inst. 614) that by 1606 prohibitions were being granted by the common law courts, and Coke writing in 1629 spoke of voidable marriages as of established law: Co. Litt. 33, a.

17 For this paragraph see *Ray* v. *Sherwood* (1836) 1 Curt. 173 at pp. 188, 199, 200; *Elliott* v. *Gurr* (1812) 2 Phill. 16 at pp. 18, 19; *P.* v. *P.* [1916] 2 I.R. 400 at pp. 422–424, 429, 433–434; *Harthan* v. *Harthan* [1949] P. 115 at pp. 131–132; *Ross-Smith* v. *Ross-Smith* [1963] A.C. 280 at p. 330. In the case of impotence the marriage was voidable only at the suit of one of the parties (*A.* v. *B.* (1868) 1 P. & D. 559) and this rule now applies to all voidable marriages: *Ross-Smith* v. *Ross-Smith* [1963] A.C. 280 at pp. 306, 348.

18 See notes 1 to 5 above.

19 [1897] P. 263 at p. 268; this passage was quoted with approval in *H.* v. *H.* [1954] P. 258 at p. 266.

20 (1638) Cro.Car. 482 at pp. 488, 493.

21 *Cooper* v. *Crane* [1891] P. 369 (at pp. 375–376: "It is clear law that if she did not in fact consent to the marriage the court will declare it null. . . . The next point urged before me was that the facts shewed that her will was overmastered by the influence of the respondent and that there was, therefore,

22 23 For footnotes see next page.

inability to understand due to intoxication,[24] mistake as to the ceremony [25] as circumstances showing the absence of voluntary consent and invalidating the marriage on that ground. Thus, although the absence of true consent may result from various circumstances, it is this absence of true consent, and not the cause of such absence, which moves the court to interfere: duress and mistake as to ceremony, for instance, may produce the appearance, but not the reality, of consent and the marriage will be invalid not because of the duress or mistake, but because of the absence of true consent brought about by the duress or mistake.

Before the Reformation want of consent, like any other impediment, rendered marriages void *ab initio* and this must have remained so after the Reformation unless such marriages became voidable by the same process as did marriages within prohibited degrees or in the case of impotence or pre-contract. There is no indication of this in the decided authorities; on the contrary, the decided authorities establish that consent is an essential ingredient of marriage and that its absence, howsoever brought about, makes the marriage void *ab initio*: see *Fulwood's Case* [26]; *Tarry* v. *Browne* [27]; *Harford* v. *Morris* [28]; *Moss* v. *Moss* [29]; *Silver* v. *Silver* [30]; in the first

no real contract"); *Parojcic* v. *Parojcic* [1958] 1 W.L.R. 1280 (at p. 1287: "I am quite satisfied . . . that the petitioner has shown that she never in fact consented to the marriage and that she was driven to go through the ceremony by the terror instilled in her by the threats exercised and made to her by her father"); *Scott* v. *Sebright* (1886) 12 P.D. 21 at pp. 23, 31; *Silver* v. *Silver* [1955] 1 W.L.R. 728 (at p. 729: "The voluntary consent of both parties is necessary for a valid marriage, and the marriage is void if such consent is lacking, as, for example, where it is procured by threats or duress").

22 *Scott* v. *Sebright* (*supra*) at p. 24; *H.* v. *H.* [1954] P. 258 (at p. 266: "The general doctrine that fear may negative consent to marriage has long been accepted in the courts of this country"); *Hussein* v. *Hussein* [1938] P. 159 (at p. 161: "He dominated her by fear and exercised the power which he had over her to coerce her into marriage").

23 *Moss* v. *Moss* [1897] P. 263; *Scott* v. *Sebright* (*supra*) at p. 24.

24 *Sullivan* v. *Sullivan* (1818) 2 Hag.Con. 238 ("If three or four intoxicate a person and marry him in that perverted state of mind . . . want of reason or volition amounting to an incapacity to consent").

25 *Way* v. *Way* [1950] P. 71 at p. 79 ("It is clear that if there is a mistake as to the identity of the person with whom the contract is made or an erroneous belief that the ceremony was one of betrothal and not of marriage, the marriage is void for want of consent"); *Ford* v. *Stier* [1896] P. 1 at p. 5 ("She did not consent to marry the respondent, but went through the ceremony as one of betrothal"); *Swift* v. *Kelly* (1835) 3 Knapp. 257 at p. 293 (P.C.) (". . . unless the party imposed upon has been deceived as to the person and thus has given no consent at all. . . ."); *Lieberman* v. *Lieberman*, *The Times*, January 24, 1899 (petitioner thought that marriage was ceremony of betrothal: "petitioner not a consenting party").

26 (1638) Cro.Car. 482 at pp. 488, 493.

27 (1661) 1 Sid. 64 at p. 65.

28 (1776) 2 Hag.Con. 423 at p. 436; see this case explained in *Portsmouth* v. *Portsmouth* (1828) 1 Hag.Eccl. 355 at p. 359.

29 [1897] P. 263; the point directly in issue was whether the marriage was vitiated by the wife's fraud in stating to the husband, in order to gain his consent to the marriage, that she was not pregnant *per alium* when in fact

30 For footnote see next page.

of these cases threats and fear, in the second force and duress, in the third force and fraud and in the fourth fraud were held to render the marriage void; in the fifth case Collingwood J. held that a marriage was void for want of consent but found that there was in fact consent on the part of both parties. It seems, therefore, that until the doubt first expressed in *Parojcic* v. *Parojcic* in 1958 [31]

she was, but in deciding this point Sir Francis Jeune P. also examined the effect of duress and fear and held that these factors which also caused "an absence of consenting will" likewise rendered the marriage void *ab initio*; he held that fraud or error invalidated a marriage only if the petitioner was thereby deceived as to the identity of the respondent and, since the petitioner in that case was deceived not as to the respondent's identity but as to her pregnancy, the marriage was valid.

[30] [1955] 1 W.L.R. 728 ("The voluntary consent of both parties is necessary for a valid marriage and the marriage is void if such consent is lacking, as, for example, where it is procured by threats or duress.") See also *Way* v. *Way*, *Kenward* v. *Kenward* [1950] P. 71 at p. 79 ("It is clear that if there is a mistake as to the identity of the person with whom the contract is made or an erroneous belief as to the ceremony, for example, a belief that the ceremony was one of betrothal and not of marriage, the marriage is void for want of consent," *per* Hodson J.; passage approved by Evershed M.R. [1951] P. 124 at p. 133; passage quoted in *Kassim* v. *Kassim* [1962] P. 224 at p. 229); *Ross-Smith* v. *Ross-Smith* [1963] A.C. 280 at p. 348. ("In a void marriage the decision depends upon the ascertainment of a state of facts instantly verifiable at the date of the marriage, such as lack of capacity or of the necessary consent or duress," *per* Lord Guest).

[31] In *Parojcic* v. *Parojcic* [1958] 1 W.L.R. 1280 at p. 1283 Davies J. said: "Counsel was, therefore, concerned to argue not only that a party's ignorance of the nature of a marriage ceremony renders such a ceremony void, but also that the effect of coercion or duress is the same. With the former proposition I agree; but, as at present advised, I am doubtful about the latter. I am inclined to think that the effect of duress upon a marriage is the same as it is upon a contract, *viz.*, to render it not void but voidable. This is the view taken by the editors of the title Divorce in Halsbury, 3rd ed., Vol. 12, p. 225." It is respectfully submitted that the analogy with contract is not the right test: *Mordaunt* v. *Mordaunt* (1870) 2 P. & D. 109 at p. 129 ("when the analogy of legal remedies in other cases of contract is put forward for adoption, the answer is that the analogy does not exist"); *Harthan* v. *Harthan* [1949] P. 115 at pp. 131–132; *Andrews* v. *Ross* (1888) 14 P.D. 15 at p. 16 ("the principles prevailing in regard to contracts of marriage differ from those prevailing in all other contracts known to the law"); *Moss* v. *Moss* [1897] P. 263 at pp. 267–268; *Sottomayer* v. *De Barros* (1879) 5 P.D. 94 at p. 101 ("very many and serious difficulties arise if marriage be regarded only in the light of a contract. It is, indeed, based upon the contract of the parties but it is a status arising out of a contract"). Examples of differences between the contract of marriage and an ordinary contract are: the parties cannot of their own volition rescind or vary a marriage contract nor have they any remedy in respect of breach of contract as such; a marriage contract invalidated because a party was of unsound mind is void and either party can petition for nullity, whereas unsoundness of mind makes an ordinary contract voidable at the option of the person of unsound mind only. In Halsbury, 3rd ed., Vol. 12, p. 225 the cases of *H.* v. *H.* [1954] P. 258, at p. 266 and *Silver* v. *Silver* [1955] 1 W.L.R. 728 are given as authorities for the proposition that a marriage induced by threats, fear or duress is voidable and not void; but in the former case Karminski J. quoted with approval Ayliffe's *Parergon*, p. 361 "matrimony contracted through any menace or impression of fear is null and void *ipso jure*" and at pp. 269–270 he said: "In the absence of consent there can be no valid marriage. There was here neither consent or valid marriage," and in the latter case Collingwood J. said that threats or duress made the marriage void: see note 21 above.

judicial opinion was uniform in holding that absence of consent, from whatever cause arising, rendered a marriage void.

But although judges appeared to have no doubts on the subject, textbook writers were by no means uniform in their view as to the effect on marriage of absence of consent. Thus, Rolle (1668),[32] Viner (1743),[33] Burn (1763),[34] and Blackstone (1776)[35] say that absence of consent renders the marriage void; Swinburne (1686)[36] and Ayliffe (1726)[37] said that fear made the marriage void, but were silent as to other forms of absence of consent; Bishop (1881)[38] said fraud, error or duress made the marriage void; Poynter (1824)[39] and Shelford (1841)[40] made contradictory statements as to the effect of force or error; Roger (1840)[41] that a marriage contracted under restraint and by means of force and custody or one procured by a trick or contrivance or by fraud or deception "so that the necessary consent was not given" is void, but that a marriage "procured by force or threats or other improper or illegal means" is voidable only; Bright (1849)[42] says that force and error makes the marriage voidable; Comyn (1762)[43] says duress makes marriage voidable.

[32] Rolle's *Abridgement*, 1668, Vol. 1, p. 340: "If a man takes A. S. for wife by duress, even if the marriage is celebrated *in facie Ecclesiae*, it is merely void and they are not man and wife because there is not consent and there can be no marriage without consent."

[33] Charles Viner's *Abridgement of Law and Equity*, 1743, Vol. 4, p. 35, where he quotes the above passage from Rolle's *Abridgement*.

[34] Burn's *Ecclesiastical Law*, 1st ed., 1763, Vol. 2, p. 1: "Where there is not the consent of both parties, it is no marriage." In the 9th ed., 1842, on p. 500 it is stated that "force, or, in very rare instances, where there is an extraordinary combination of circumstances proved in effect equivalent to force" makes marriage *ipso facto* void and no declaratory sentence is necessary though it may be expedient to obtain one; on p. 501 it is stated that absence of consent vitiates the marriage.

[35] Blackstone's *Commentaries*, 2nd ed., 1766, Vol. 1, p. 433 "taking it (*i.e.*, the marriage) in this civil light, the law treats it as it does all other contracts, allowing it to be good and valid in all cases where the parties at the time of making it were, in the first place, willing to contract"; and at p. 439 the author, in setting out the civil disabilities, says: "Lastly, the parties must not only be willing and able to contract but actually must contract themselves in due form of law."

[36] Swinburne's *Treatise of Spousals*, 1686, p. 38.

[37] Ayliffe's *Parergon Juris Canonici Anglicani*, 1726, p. 361: "Matrimony contracted through any menace or impression of fear is null and void *ipso jure*, so that it is not necessary to rescind the same by an action in the Civil and Canon Law called *Quod Metus Causa*, because all marriages ought to be free."

[38] Bishop's *Marriage and Divorce*, 6th ed., 1881, para. 166.

[39] Poynter's *Doctrine and Practice of the Ecclesiastical Courts*, 1824; at p. 83 the author includes force and error amongst the canonical disabilities making the marriage voidable, but at p. 138 under the heading "Of force and error" he says: "matrimony contracted in consequence of menace or impression of fear is null and void *ipso jure*."

[40] Shelford's *Law of Marriage and Divorce*, 1841; at p. 154 force and error are included amongst the canonical disabilities making the marriage voidable, but at p. 214 it is said that marriages obtained by force, menaces and duress are void *ipso jure*.

[41] Roger's *Ecclesiastical Law*, 1840, p. 564.

[42] Bright's *Husband and Wife*, 1849, 1 page, 6.

[43] Comyn's *Digest*, 1st ed., 1762, Vol. 1, p. 553.

It is submitted that in so far as some writers in the eighteenth and nineteenth centuries asserted that absence of real consent made the marriage voidable, as against it being void *ab initio*, they were mistaken and, indeed, such assertion was contrary to the canon law which the ecclesiastical courts continued to administer after the Reformation, subject only to any statutory and judicial modifications. How then did these writers come to make such a mistake? It is suggested that the mistake resulted from a false analysis of the consequences flowing from a marriage invalid because of absence of consent. These consequences are, first, the right of the parties to ratify by their conduct a marriage which would otherwise be void for lack of consent and, secondly, the rule that a marriage, regular in form, is presumed to be valid until the contrary is proved.

The rule of canon law was that a marriage brought about by duress, fraud or mistake as to the person was void at its inception but could be ratified by the parties' subsequent voluntary consent inferred from their conduct, such as living together or having sexual intercourse. Ayliffe [44] expressed the rule thus: "Though matrimony contracted through such a fear as may happen to a man of courage, constancy and resolution be null and void *ipso jure*; yet this fear may be purged and done away by a spontaneous cohabitation for so long a time as that the cause of such fear may be presumed to cease and be destroyed thereby and a spontaneous consent added in its room." In so stating the law Ayliffe was merely restating the old rule of canon law.[45] This rule is also stated by Swinburne,[46] Poynter,[47] Roger,[48] and Shelford [49] and appears to have been accepted by Lord Merrivale P. to apply in a case where the petitioner went through the ceremony of marriage under the erroneous belief that it was a ceremony of betrothal.[50] The second rule applicable in these cases is that a marriage regular in form is presumed to be valid and the burden of showing that it

[44] *Parergon*, 1726, p. 361.

[45] Ayliffe gives as his authority Book IV, title 7, Ch. 2 of Decretals of Pope Gregory IX, 1227; Esmein, *Le Mariage en Droit Canonique*, 1891, pp. 303–314; *Mrs. Ash's Case* (1702) Freeman C.C. 259 ("A lunatic during his lunacy is not capable of marriage, but in lucid intervals he may; and if such a marriage should be had during the lunacy, the civilians held, that by subsequent consent it may be made good, as the marriage of an infant before the age of discretion may be made good by a subsequent assent.")

[46] *Treatise of Spousals*, 1686, p. 38.

[47] *Doctrine and Practice of the Ecclesiastical Court*, 1824, p. 138 quoting Ayliffe.

[48] *Ecclesiastical Law*, 1840 on p. 564, quoting Ayliffe.

[49] *Law of Marriage and Divorce*, 1841, p. 214 quoting Ayliffe.

[50] *Valier* v. *Valier* (1925) 133 L.T. 830 ("I must consider whether there has been anything in the Petitioner's subsequent conduct which amounted to a ratification. The case would be a very different case if, after the petitioner realised that a marriage ceremony had been performed, the parties had proceeded to take each other as man and wife . . . there has been no such understanding or consent by the petitioner to accept the responsibilities of the respondent's husband as would make the ceremony binding on him.")

is invalid for want of consent is on the party making such allegation.[51] Thus, the marriage is on the face of it good unless the party impugning it succeeds in showing that he has neither consented to it at the time nor ratified it subsequently and it is not difficult to understand how, loosely speaking, the marriage might be spoken of as being valid unless annulled, *i.e.*, voidable, whereas, on a true analysis, the marriage is only prima facie valid, the ceremony being prima facie evidence of a valid marriage. The same presumption of validity of marriage arises where it is alleged that a party was of unsound mind at the time of marriage and was for that reason incapable of giving consent to the marriage,[51] but that presumption is only a prima facie one, even though the case be of a kind in which " very clear and cogent evidence must be given before the presumption of consent can be rebutted and the marriage annulled." [52] Once the presumption is rebutted the marriage stands revealed for what it is; a marriage void *ab initio*. A spouse's mental incapacity, due to unsoundness of mind, to consent to marriage undoubtedly makes the marriage void *ab initio*,[53] because " consent is an essential ingredient of a valid marriage " [54] and if that be the effect of incapacity to consent, why should failure to consent have a different effect? In each case an essential ingredient of a valid marriage, namely consent, is lacking and it seems logical that, if absence of consent due to unsoundness of mind makes the marriage void, absence of consent due to, *e.g.*, duress, should have a like result.

It is submitted that the authorities establish that until the Matrimonial Causes Act, 1857,[55] a marriage invalidated for want of consent was void and not voidable. It was void before the Reformation; it did not fall within the category of marriages which became voidable through the intervention of the common law courts but, on the contrary, such decided cases as there are established that it continued to be regarded as being void; after the 1857 Act its void character was confirmed in both *Moss* v. *Moss* [56] and *Silver*

[51] *Browning* v. *Reane* (1812) 2 Phil. Eccl. 69; *Portsmouth* v. *Portsmouth* (1828) 1 Hag.Con. 355 at p. 359; *Cooper* v. *Crane* [1891] P. 369; *Re Spier* [1947] W.N. 46; *Re Park* [1954] P. 89 at p. 96.

[52] *Cooper* v. *Crane* [1891] P. 369 at p. 376.

[53] In *Browning* v. *Reane* (1812) 2 Phil.Eccl. 69 at p. 70 (" want of reason must, of course, invalidate a contract, and the most important contract of life, the very essence of which is consent "), *Re Spier* [1947] W.N. 46 and *Re Park* [1954] p. 89; affd. 112 (C.A.) marriages were sought to be invalidated after the death of one of the spouses and in the first two cases the marriage was held to be invalid, which could only happen in a marriage void *ab initio*.

[54] *Re Park* (*supra*) at p. 96. Lord Penzance's well-known definition of marriage in *Hyde* v. *Hyde* (1866) 1 P. & D. 130 at p. 138: " the voluntary union for life of one man and one woman to the exclusion of all others " likewise stresses the necessity of consent in a valid marriage.

[55] This Act set up the new civil Court of Divorce and Matrimonial Causes and transferred to it from the ecclesiastical courts the jurisdiction in matrimonial causes.

[56] [1897] P. 263; see note 29 above.

v. *Silver*.[57] What has since occurred to change the quality of such marriage and to turn the void marriage into a voidable one? Section 22 of the Matrimonial Causes Act, 1857, directed that in nullity suits the new Court for Divorce and Matrimonial Causes was to "proceed and act and give relief on principles and rules which in the opinion of the said court shall be as nearly as may be conformable to the principles and rules on which the ecclesiastical courts have heretofore acted and given relief."[58] The same jurisdiction was inherited by the present Divorce Court by virtue of the Supreme Court of Judicature (Consolidation) Act, 1925, s. 32,[59] so that if the particular marriage was considered by the ecclesiastical courts to be void *ab initio*, then statutory provision enjoins that the Divorce Court shall continue to consider it to be void *ab initio*.

D. TOLSTOY.*

[57] [1955] 1 W.L.R. 728; see note 30 above.

[58] *Templeton* v. *Tyree* (1872) 2 P. & D. 420 at p. 422 ("This court has no power except such as was given it by the Matrimonial Causes Act, 1857, and the power so given was that exercised in similar cases in the Ecclesiastical Courts"); *Andrews* v. *Ross* (1888) 14 P.D. 15 ("By s. 22 of the Matrimonial Causes Act of 1857 it is provided that in all suits and proceedings other than proceedings to dissolve any marriage, the Court shall proceed to act and give relief on principles and rules on which the Ecclesiastical Courts have heretofore acted. By them I am bound"); *Moss* v. *Moss* [1897] P. 263 at p. 270 (". . . the principles of the Ecclesiastical Courts which, in nullity cases, are the guide of this tribunal"); *Napier* v. *Napier* [1915] P. 184 (C.A.) (*per* Lord Cozens-Hardy M.R. at p. 186: "We are only exercising a statutory jurisdiction, and we must in the present case confine ourselves to the limits imposed by s. 22"; *per* Pickford J. at pp. 188, 191: "By s. 22 it is provided that in all suits except those of dissolution of marriage (including therefore suits for nullity) relief shall be given on the principles prevailing in the Ecclesiastical Courts. . . . The grounds of nullity are limited by the Act just as strictly as the grounds of dissolution; but instead of being set out in the Act they have to be sought in the principles adopted in the Ecclesiastical Courts. . . . I do not think it was in the power of the Court to alter the law; such alteration must be made if at all by the Legislature which has established the law"; *per* Warrington L.J. at p. 193: "The jurisdiction is not in my opinion a discretional jurisdiction, but is to be exercised according to certain rules and principles").

[59] *Baxter* v. *Baxter* [1948] A.C. 274 at p. 285, *per* Viscount Jowitt L.C.; *Matalon* v. *Matalon* [1952] P. 233 at p. 237, *per* Hodson L.J. ("That (*i.e.*, s.32) it is conceded, throws the court back to the practice and jurisdiction of the Ecclesiastical Courts").

* Q.C.